



CHAPTER v

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Glasgow Corporation (Extension of Time).

[6th May 1955.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation 26 Geo. 5. & Procedure (Scotland) Act 1936 and it is requisite that the said 1 Edw. 8. c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.
2. This Act may be cited as the Glasgow Corporation (Extension of Time) Order Confirmation Act 1955. Short title.

SCHEDULE

GLASGOW CORPORATION (EXTENSION OF TIME)

Provisional Order to extend the time for the acquisition of lands for the purposes of the tunnels under the river Clyde and relative works authorised by the Glasgow Corporation Order 1948 and for other purposes.

WHEREAS by the Glasgow Corporation Order 1948 the Corporation of the city of Glasgow (hereinafter referred to as "the Corporation") were authorised to acquire lands and to construct tunnels under the river Clyde between Linthouse and Whiteinch in the city and royal burgh of Glasgow together with approaches thereto and other relative works:

And whereas it was provided by section 6 of the said Order that the powers granted by the said Order for the compulsory purchase of lands should cease on the thirty-first day of December one thousand nine hundred and fifty:

And whereas by section 17 of the Glasgow Corporation Order 1952 the period for the exercise of the said powers was extended until the thirty-first day of December one thousand nine hundred and fifty-four:

And whereas it is expedient that the said period should be further extended as provided by this Order:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the said Act the Secretary of State orders as follows:—

Short title and citation.

1. This Order may be cited as the Glasgow Corporation (Extension of Time) Order 1955.

This Order and the Glasgow Corporation Acts 1855 to 1954 may be cited together as the Glasgow Corporation Acts 1855 to 1955.

Interpretation.

2. In this Order—

"Corporation" means the Corporation of the city of Glasgow;

"Order of 1948" and "Order of 1952" mean respectively the Glasgow Corporation Order 1948 and the Glasgow Corporation Order 1952.

Extension of time.

3. The time limited by section 6 (Period for compulsory purchase) of the Order of 1948 for the compulsory purchase of lands for the construction of the tunnels and relative works authorised by the Order of 1948 as extended by section 17 (Extending time for acquisition of lands for tunnel) of the Order of 1952 is hereby further extended until the thirty-first day of December one thousand nine hundred and fifty-seven.

Power to owners and lessees to give notice as to purchase of land.

4.—(1) If any person being the owner or lessee of any land to which the last preceding section relates gives notice in writing to the Corporation of his desire that as soon as may be such land or his

(Extension of Time) Order Confirmation Act, 1955

interest therein shall be acquired then the Corporation shall within a period of six months after the receipt of that notice either—

- (a) enter into an effective contract with such person for the acquisition by agreement of such land or part of such land or his interest in such land or part thereof; or
- (b) serve a notice to treat for the compulsory acquisition of such land or part of such land or of such person's interest in such land or part thereof; or
- (c) notify their intention not to proceed with the purchase of such land or of such person's interest therein;

and if they fail to do so within the said period or if within the said period they notify their intention in accordance with the foregoing paragraph (c) the powers referred to in the last preceding section so far as they authorise the compulsory purchase of the land or the interest in land (as the case may be) to which the notice given by the owner or lessee relates shall cease.

(2) Where a notice to treat (whether relating to the whole or part of the land to which the notice given by the owner or lessee relates) is given in accordance with paragraph (b) of subsection (1) of this section then—

- (a) if in pursuance of any statutory provision in that behalf the notice to treat is withdrawn the said powers so far as they authorise the compulsory purchase of such land or (as the case may be) the interest therein of the person on whom the notice to treat was served shall cease;
- (b) if part only or such person's interest in part only of such land is acquired in pursuance of the notice to treat the said powers so far as they authorise the compulsory purchase of the remainder or (as the case may be) such person's interest in the remainder of such land shall cease.

5. The costs charges and expenses of and incident to the preparing Costs of Order.
for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and shall be allocated among the several undertakings and services of the Corporation in such proportions as the Corporation may deem expedient.

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